

June 18, 2009



U.S. Department
of Transportation

Pipeline and Hazardous
Materials Safety Administration

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

DOT-SP 12384
(SEVENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-DOT specification hydraulic accumulators containing compressed nitrogen. This special permit provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.302a(a)(1), and 175.3 in that the prescribed packagings are not authorized except as specified herein.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on December 4, 2008.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Articles, pressurized pneumatic or hydraulic containing non- flammable gas	2.2	UN3164	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are steel hydraulic accumulators conforming with drawings on file with the Office of Hazardous Materials Special Permits and Approvals (OHMPA) and in conformance with the following:

(1) Gas Bottle: A seamless accumulator having a capacity of not over 40 gallons, a design pressure not exceeding 3000 psig, and in full compliance with Section VIII, Division 1 of the ASME Code, with a minimum 3.5:1 burst to design pressure ratio; or

(2) Gas Bottle: A seamless accumulator having a capacity of not over 40 gallons, a design pressure not exceeding 5000 psig, and in full compliance with Section VIII, Division 1 of the ASME Code, with a minimum 3.5:1 burst to design pressure ratio; or

(3) Surge Arrestor: A seamless accumulator having a capacity of not over 120 gallons, a design pressure not exceeding 500 psig, designed, fabricated and tested in accordance with Section VIII, Division 1 of the ASME Code with a minimum 3.5:1 burst to design pressure ratio; or

(4) Diaphragm: a welded accumulator having a capacity of not over 1 gallon, a design pressure not exceeding 4,000 psig, with a minimum 4:1 burst to design pressure ratio; or

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(5) Bladder Accumulator: A seamless accumulator having a capacity of not over 40 gallons, a design pressure not over 6,500 psig and in full compliance with Section VIII, Division 1, Appendix 22 of the ASME Code, with a minimum 3:1 burst to design pressure ratio; or

(6) Bladder Accumulator: A welded accumulator having a capacity of not over 120 gallons, a design pressure not exceeding 500 psig, and in full compliance with Section VIII, Division 1 of the ASME Code, with a minimum 3.5:1 burst to design pressure ratio; or

(7) Piston Accumulator: A seamless accumulator having a capacity not over 50 gallons, a design pressure not exceeding 5,000 psig, designed, fabricated and tested in accordance with Section VIII, Division 1 of the ASME Code with a minimum 3.5:1 burst to design pressure ratio; or

(8) Hydracushion: A welded accumulator having a capacity of not over 1 gallon, a design pressure not exceeding 2,000 psig, with a minimum 4:1 burst to design pressure ratio.

b. TESTING - Accumulators must be tested without evidence of failure or damage, to at least 1 ½ times the design pressure prior to each refill and reshipment.

c. OPERATIONAL CONTROLS -

(1) The charged pressure of each accumulator at 70°F for shipment must not exceed 70 percent of the design pressure.

(2) Each accumulator up to and including a 1 gallon capacity must be shipped in strong outside packaging in accordance with § 173.301(a)(9). Units above 1 gallon capacity must be securely strapped to a wooden pallet. Each package must be marked "DOT-SP 12384" and "NITROGEN-HYDRAULIC ACCUMULATORS".

(3) Each accumulator must be constructed to relieve pressure without bursting in a fire or must be equipped with a pressure relief device as required in § 173.301(f).

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8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, passenger-carrying aircraft, and cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

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No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CWFreeman/sln